

breached even if it existed, or how such a breach caused Plaintiff any harm. Plaintiff does not show how he could cure these significant defects through amendment.

MEDIC's demurrer is sustained without leave to amend.

PAUL ROEMMICK et. al., v. HYUNDAI MOTOR AMERICA
Case No. CU26-03927

Defendant HYUNDAI MOTOR AMERICA's Motion to Compel Arbitration

TENTATIVE RULING:

Defendant HYUNDAI MOTOR AMERICA ("Defendant") moves to compel arbitration of Plaintiffs PAUL and KATIE ROEMMICK's claims for violation of the Song-Beverly Consumer Warranty Act pertaining to their 2025 Hyundai Palisade (the "Vehicle"). Defendant states that the Vehicle's owner's handbook contains an arbitration clause, as does the service agreement for the Bluelink service package in which it says Plaintiffs enrolled the Vehicle.

Defendant's motion to compel arbitration is DENIED.

Legal Standard. A party to an arbitration agreement may petition the court to compel arbitration if it alleges the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate. (Code Civ. Proc., § 1281.2.) In ruling on a petition to compel arbitration, the trial court shall order parties to arbitrate if it determines that a valid agreement to arbitrate the controversy exists and the dispute between the parties falls within the scope of the agreement. (*Luxor Cabs, Inc. v. Applied Underwriters Captive Risk Assurance Co.* (2018) 30 Cal.App.5th 970, 977 (*Luxor Cabs*)). Arbitration should be compelled unless it can be said with assurance that the arbitration clause in question is not susceptible to an interpretation covering the asserted dispute. (*EFund Capital Partners v. Pless* (2007) 150 Cal.App.4th 1311, 1320-1321.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving by a preponderance of the evidence any defense. (*Ibid.*)

Existence of Agreement to Arbitrate; Equitable Estoppel. A party seeking to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence." (*Engalls v. Permanente Medical Group, Inc.* (1997) 15 Cal. 4th 951, 972.) Here, Defendant fails to meet that burden.

To the extent that Defendant relies on an arbitration provision contained in the 2025 Owner's Handbook & Warranty Information, Defendant has failed to establish mutual assent or that enforcing an arbitration agreement presented in this manner is not procedurally unconscionable.

Preliminarily, the handbook attached to the declaration of Ali Ameripour is not sufficiently authenticated. An attorney cannot authenticate a client's document.

Further, Defendant did not establish that Plaintiffs ever assented to the arbitration provision contained in the handbook, either by signature or by conduct. Defendant contends that Plaintiffs accepted the handbook by using the Vehicle or by accepting the benefits under the warranty. Defendant, however, submitted no evidence indicating that Plaintiffs were ever provided with the handbook or informed of the arbitration provision found within the owner's manual. Plaintiffs receipt of an Owner's Manual with a new vehicle does not manifest consent to arbitration.

To form a contract under California law there must be mutual assent. In order to establish mutual assent there must be actual or constructive notice of the terms of agreement. An arbitration term hidden in a 48 page Owner's Handbook does not establish mutual assent, especially in the circumstance that a purchaser executes a sales contract. Even if an argument for mutual assent could be made based on conduct, enforcing such a term in the manner it was presented would be so procedurally unconscionable as to render the term unenforceable.

The court finds that Defendant has also not proven that the purported Bluelink service agreement arbitration clause applies. Defendant's witness declares that Plaintiff purchased enrolled in Bluelink services on July 15, 2025. (Declaration of Vijay Rao in Support of Motion at ¶5.) However, Defendant again lacks specific evidence that Plaintiffs were in fact presented with the Bluelink services arbitration clause, advised of it, or agreed to it. Further, Plaintiffs concerns about their vehicle do not appear to be related to any of the Bluelink-connected services. Even if Defendant's argument that the conduct associated with activating the Bluelink services shows acceptance, bootstrapping the Bluelink-connected services arbitration provisions to apply to the entire vehicle would be procedurally and substantively unconscionable so as to render the term unenforceable.

Plaintiffs are not estopped from denying application of either arbitration agreement. In determining whether equitable estoppel prevents a party from denying application of an arbitration agreement "the essential concern is whether plaintiffs are trying to enforce contractual terms beneficial to them while avoiding their own contractual agreement to arbitrate." (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1136.) However, just as in *Ford Motor Warranty Cases*, the potential liability on warranties Defendant faces here derives from statute, not any contracts between the parties. (*Id.* at p. 1136.)

Conclusion. Defendant's motion to compel arbitration is denied.

LAWRENCE PAUL MORSEN et al. v. LISA WOLFE, City Clerk of Benicia, et al.
CASE NO. CU26-07263

Petition for Writ of Mandate